

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC doing business as COLONIAL
MOBILE MANOR,
Plaintiff,

vs.

Case No. 2016-CC-001997

DELMAR C. O'DELL, JR. and
ANY UNKNOWN TENANT(s),

and

STATE OF FLORIDA,
DEPARTMENT OF HIGHWAY SAFETY
AND MOTOR VEHICLES,
Defendants.

MOTION FOR WRIT OF POSSESSION

COMES NOW, Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC doing business as COLONIAL MOBILE MANOR, moves for an order directing the Clerk of Courts to issue a Writ of Possession in the above styled cause pursuant to Fla. R. Civ. P. 1.580. In support of this relief Plaintiff states:

1. Plaintiff brought an action for determination of ownership of a mobile home in which the Defendant owner was deceased, and there was an unknown tenant in possession of the premises.
2. Defendant, ANY UNKNOWN TENANT, was served as evidenced by the service document filed in the above styled cause.
3. There was no answer filed by any unknown tenant and no unknown tenant appeared

at the hearing on the determination of ownership of the mobile home.

4. The premises is now vacant.

5. A Declaratory Judgment with Reservation on Issues was rendered by this Court on August 9, 2016. At that time, the Court did not render any orders pertaining to possession of the property.

6. Pursuant to its judgment, and Fla. R. Civ. P. 1.580 Plaintiff is entitled to a Writ of Possession to the property.

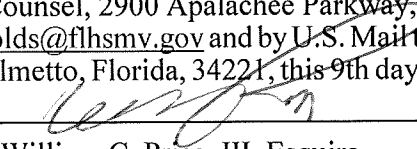
7. Pursuant to Fla. Stat. §723.061 the Plaintiff is entitled to possession of the mobile home to which it is determined to be the owner after ten days notice of the Writ of Possession has been ordered.

8. A proposed Order on Writ of Possession is attached to this Motion as Exhibit A.

WHEREFORE, the Plaintiff moves this Honorable Court to enter an order granting the Plaintiff a Writ of Possession for the property identified as Lot 70 of Colonial Mobile Manor and for such other relief as the interests of justice require.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Writ of Possession has been furnished to the STATE OF FLORIDA DEPARTMENT OF HIGHWAY SAFETY AND MOTOR VEHICLES, c/o Damaris E. Reynolds, Chief Counsel, 2900 Apalachee Parkway, A-432, Tallahassee, Florida, 32399-0504, via email to: damarisreynolds@flhsmv.gov and by U.S. Mail to ANY UNKNOWN TENANT(s), 900 - 9th Avenue East, Lot #70, Palmetto, Florida, 34221, this 9th day of September, 2016.



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